

SECTION A – SOLICITATION/CONTRACT FORM SOLICITATION, OFFER AND AWARD						PAGE 1	
1. CONTRACT NO.		SOLICITATION NO. 2024-R-065		2. TYPE OF SOLICITATION		3. EFFECTIVE DATE See Block 22	
4. REQUISITION/ PURCHASE NO. N/A		5. ISSUED BY Office of the Sergeant at Arms United States Senate Senate Office Building Washington, DC 20510-7207		6. ADDRESS THE OFFER TO (if other than Item 5) Attn: Contracts Department Office of the Sergeant at Arms United States Senate 2 Massachusetts Avenue, NE Washington, DC 20002			
SOLICITATION							
7. FOR INFORMATION CALL OR E-MAIL		A. NAME: Nicole Barnes Sr. Procurement & Contracting Specialist			B. TELEPHONE NO: 202-224-9321 NO COLLECT CALLS) or EMAIL: acquisitions@saa.senate.gov		
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OFFER (Must be fully completed by Offeror)							
9. In compliance with the above, the undersigned agrees, if this offer is accepted within ____ calendar days (<i>90 calendar days unless a different period is inserted by the Offeror</i>) from the date of receipt of offers specified above, to furnish any of the items upon which prices are offered at the price set opposite each item, delivered at the designated point(s), within the specified schedule.							
10. ACKNOWLEDGEMENT OF AMENDMENTS <i>(The Offeror acknowledges receipt of amendments to the SOLICITATION for Offerors and related documents numbered and dated:</i>			AMENDMENT NO.		DATE		AMENDMENT NO.
			001		10/29/2024		
			002		04/01/2025		
11A. NAME AND ADDRESS OF OFFEROR		TIN NO	Dunn & Bradstreet	12. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or Print)			
11B. TELEPHONE NO.		11C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE			13. SIGNATURE		14. DATE SIGNED
AWARD (To be completed by Senate)							
15. ACCEPTED AS TO ITEMS NUMBERED		16. AMOUNT In accordance with purchase orders issued under this contract			16. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 19 (4 copies unless otherwise specified)		ITEM
18. ADMINISTERED BY (if other than Item 5)			CODE	19. PAYMENT WILL BE MADE BY Office of the Sergeant at Arms United States Senate Financial Department Washington, DC 20510-7205			
20. NAME OF CONTRACTING OFFICER David W. Baker				21. UNITED STATES SENATE (signature of Contracting Officer)			22. DATE SIGNED
IMPORTANT — Award will be made on this Form, or other authorized official written notice							

B.1 Scope

This is a Multiple Award, Indefinite Delivery-Indefinite Quantity (IDIQ) contract supporting the U.S. Senate Office of the Sergeant at Arms (SAA) Support Operations by providing 1) moving services for IT security cabinets nationwide, 2) shredding services for Senate State Offices nationwide, and 3) emergency cleaning services in the Washington DC, Maryland, and Virginia (DMV) area. Vendors can propose on these three services jointly or independently. These services shall be provided year around, with increased utilization during election cycles.

B.2. Description of Services

Under a task order issued by the SAA, the Contractor shall provide labor, supervision, materials/supplies for IT moving services, shredding services, and emergency cleaning services, as required to support Senate Offices located nationwide and in the DMV.

B.3 Pricing

Unit Pricing for the services and products shall be set forth in Attachment J-2 Pricing Table, under Section J – Contract Attachments of the Contract. All pricing shall be fully burdened with all administrative costs, inclusive of local travel, local transportation, and other direct costs (ODCs).

B.4 Contract Type

The SAA plans to award multiple Indefinite Delivery/Indefinite Quantity (IDIQ) contracts utilizing Firm-Fixed-Price (FFP), Time and Material (T&M), and Labor Hour (LH) task orders for products and services.

- a. Delivery or performance shall be made only as authorized by task orders issued in accordance with this Contract ("task orders"). The SAA shall purchase products or services by issuing a written task order signed by an authorized representative, indicating specific products, quantities, total price, delivery dates, and/or any other special instructions. The SAA may order some, all, or none of the items listed in the Attachment J-2 Pricing Table, during the Contract term. The SAA may issue multiple task orders for the products or services during the Contract term.
- b. All task orders are subject to approval and acceptance by the Contractor, which shall use commercially reasonable efforts to either accept or reject such orders within five (5) business days from receipt thereof.

B.5 Term

The term of this Contract includes a base and four option periods. Base period is from date of award through twelve (12) months, with four 12-month option periods thereafter. Exercise of options will be in accordance with Section H.9 Exercise of Options.

B.6 Price Re-determination and Adjustment

The Contractor may offer a price reduction at any time effective upon the date offered by the Contractor and will apply to all products on or after the effective date of price change. Price increases must be mutually agreed to and incorporated into the Contract through a modification hereto.

B.7 Pricing Schedule

The Pricing Schedule referenced in Section J – Contract Attachments contains the firm fixed prices and rates for the Contractor, which the SAA will use and issue FFP, T&M, and LH Task Orders to the Contractor as a part of this Contract.

Pricing for the hourly rates for each proposed labor category required to provide the services and deliverables in this Contract, shall be set forth in the Pricing Table included as Attachment J-2 Pricing Table.

B.8 Contract Ceiling and Guaranteed Minimum

The maximum ceiling of this IDIQ contract is \$1,500,000. There is no guaranteed minimum on this IDIQ Contract. The Senate does not guarantee any work from this Multiple Award IDIQ Contract, as individual Task Orders will be competed among IDIQ Contract holders.

B.9 Task Order Procedures

B.9.1 Task Orders

Any product or service to be provided under this Contract shall be ordered by issuance of task order(s) by the Contracting Officer (See Section G.1, Contract Administration below). Orders shall be addressed to the Contractor at the address in Section A, Block 11A of the Contract.

- a. Funding will be provided at the task order level.
- b. All Contractor price quotes must use the pricing referenced in Attachment J-02 Pricing Table and be presented to the SAA for evaluation.
- c. Task Orders will be issued electronically by the SAA to the Contractor and can be issued as FFP, T&M, or LH.
- d. All task orders are subject to the terms and conditions of this Contract. In the event of conflict between a task order and this Contract, the Contract shall control in accordance with Section H.1 Order of Precedence. The parties shall not use task orders to modify the Contract.
- e. Delivery or performance shall be made only as authorized by task orders issued by the SAA in accordance with this Contract. Funding is provided at the task order level. The SAA shall purchase services by issuing a written task order executed by the Contracting Officer.
- f. Any task order issued during the effective period of this Contract and not completed within that period shall be completed by Contractor within the time specified in the task order. The Contract shall govern the parties' rights and obligations with respect to that task order to the same extent as if the task order were completed during the Contract term.
- g. The Contractor shall use SAA-provided resources solely and exclusively for providing and supporting services in accordance with task orders issued under this Contract. Any and all other applications, functionality, utilization, or data are strictly prohibited on, or from, interacting with SAA-provided resources. Unauthorized use of SAA-provided resources may result in Contract termination.
- h. All task orders shall include delivery schedule and instructions or other task order information as necessary.
- i. Task orders will be issued by the SAA to the Contractor using electronic methods (i.e., e-mail).

B.9.2 Task Order Proposal Request (TOPR)

The SAA will issue a TOPR on an FFP, T&M, or LH basis to the Contractor who shall prepare and submit the Task Order quote to the SAA with proposed prices, labor categories, and rates and a total Task Order price. The SAA issuing a TOPR does not constitute an authorization to deliver the products.

Unless otherwise provided in the TOPR, the SAA will follow the below procedures for award of Task Orders:

- a. The SAA will issue a TOPR that contains Support Operations statement of work (SOW).
- b. The SAA will review the proposed technical approach and price to determine the best value offeror.
- c. The SAA will notify the Contractor of the award by issuance of a task order.

The Contractor shall provide a brief proposal response to the SOW requirements in the TOPR issued by the SAA. The Contractor's proposal shall not exceed ten (10) pages. Unless otherwise directed within the TOPR, the quote shall, at a minimum:

- a. Address all Task Order requirements, tasks, and deliverables;
- b. Describe the supervision process to be employed;
- c. Contain a FFP, T&M, or LH quote providing, based on the rates in Attachment J-2 Pricing Table for the applicable Contract period.

With the issuance of a task order executed by the SAA Contracting Officer, the SAA shall assign a Task Order number, identified as a suffix to the Contract number, for use as reference for the duration of the Task Order term. The SAA may modify Task Orders throughout the term of the Contract, as needed.

SECTION C - TASK ORDERS / STATEMENT OF WORK (SOW)

C.1 INDEFINITE DELIVERY - INDEFINITE QUANTITY ("IDIQ")

This is an indefinite delivery-indefinite quantity (IDIQ) Contract.

C.1.1 Delivery or performance shall be made only as authorized by task orders issued in accordance with this Contract (Task Orders). The SAA may issue multiple task orders for services during the Contract term.

C.1.2 All task orders are subject to approval and acceptance by the Contractor, which shall use commercially reasonable efforts to either accept or reject such orders within two (2) business days from receipt thereof.

C.1.3 Any task order issued during the effective period of this Contract and not completed within that effective period of the contract shall be completed by Contractor within the time specified in the task order. The Contract shall govern the parties' rights and obligations with respect to that task order to the same extent as if the order were completed during the Contract term.

C.2 ORDERING

C.2.1 Any products or services to be furnished under this Contract shall be ordered by issuance of Task Order(s) by the Contracting Officer (See G.1 below). Orders shall be addressed to the Contractor at the address in Section A, Block 11A of the Contract.

C.2.2 All Task Orders are subject to the terms and conditions of this Contract. In the event of conflict between a Task Order and this Contract, the Contract shall control in accordance with Section H.1, Order of Precedence. The parties shall not use Task Orders to modify the Contract.

C.2.3 Task Orders will be issued electronically by the SAA to the Contractor.

C.2.4 All Contractor price proposals must use the rates referenced in B.3 and be submitted to the SAA for proposal evaluation. Each Task Order will specify the contract type (FFP, T&M, or LH) the specific Task Order.

C.3 BACKGROUND

The SAA requires moving, shredding, and emergency cleaning services to support the Senate community including Senate State Offices across the entire United States.

C.4 CONTRACTOR REQUIREMENTS

C.4.1 IT Security Cabinets Moving Services – CLIN 1

The Contractor shall furnish all moving and packing materials for safe transit of the IT security cabinets and associated equipment. The Contractor shall have all necessary equipment for retrieving the IT security cabinets from the loading dock area within the Senate Office Buildings. The Contractor shall provide required timelines and updates throughout the delivery process. The Contractor shall offload the IT security cabinet at the agreed upon location of the delivery site. The IT security cabinets shall be securely packed in certified packing material to avoid any damages and transported from Capitol Hill in Washington, DC to various state offices throughout all 50 states.

C.4.1.1 The Contractor shall pick up and deliver the cabinet which have the following dimensions: Width: 45" Height: 74" Depth: 31" and weighs approximately 300lbs. The cabinet value is approximately \$1000.00.

C.4.1.2 The Contractor shall provide delivery to final destination within 2 weeks of the SAA initiating the work order. Destinations will be located in all 50 states. Exceptions to the two (2) week delivery time frame may be acceptable for non-continental states.

C.4.1.3 The Contractor shall provide tracking information for SAA staff to view or ask for during business hours.

C.4.1.4 The Contractor shall obtain signature upon delivery from the designated POC within the office. All damage prior to signature will be the responsibility of the Contractor, not to exceed \$2,000.

C.4.1.5 The Contractor shall provide a list of all the data that the software and/or vendor collect, use, or share. It must also include retention policies and schedules of when data is cleared from non-Senate servers.

C.4.2 Shredding Services – CLIN 2

The Contractor shall provide options for both secure on-site shredding and shredding bins that provide secure housing of all documents prior to retrieval. The Contractor shall provide support to all Senate

offices and attempt to provide service on the same date of every month as scheduled by the office. The Contractor shall provide the office(s) with acknowledgement of shredding should the office choose pickup in lieu of on-site shredding.

C.4.2.1 The Contractor shall provide shredding services year-round with an increase in shredding during an office's permanent or temporary closure, which can happen after local natural disasters. Senate offices may range in size from one (1) to five (5) personnel for a small office, and from six (6) to fifteen (15) personnel for a large office. During various times throughout the year, office size may increase up to thirty (30) personnel, on a temporary basis. Shredding services will increase during election years with larger quantity of shredding required.

C.4.2.2 The Contractor shall provide secure shredding services for documents, damaged material, hard drives, thumb drives, and other electronic devices.

C.4.2.3 The Contractor shall provide incineration services for the destruction of wet documents.

C.4.2.4 The Contractor shall coordinate with Senate Offices to set a cadence for service based on office needs. The SAA will facilitate contact to establish the cadence of shredding service.

C.4.2.5 The Contractor shall provide services through pick up of material to be shredded or provide shipping labels for offices to ship. If utilizing the shipping option, shipments shall be insured and certified mail or other tracking shall be provided. In all cases, a receipt of destruction must be sent to the office upon completion of shredding.

C.4.3 Emergency Cleaning Services – CLIN 3

The Contractor shall provide all cleaning equipment and materials, which shall include, but is not limited to, all required Personal Protection Equipment (PPE). The Contractor shall notify the SAA at the time in which the work request is complete. The Contractor shall safely remove and dispose of all waste and materials.

C.4.3.1 Emergency cleaning services may be required for Senate locations in Manassas, VA; Washington, DC; and Landover, MD.

C.4.3.2 Upon notification of a task order, the Contractor has a two (2) hour response time within the DMV.

C.4.3.3 The Contractor shall provide Personal Protection Equipment (PPE) for their staff in the event cleaning services include clean-up of biohazardous waste.

SECTION D – EVALUATION, INSPECTION AND ACCEPTANCE

D.1 Definitions

D.1.1 The term "Services," as used in this Section, includes services, workmanship, and documentation furnished or utilized in the performance of services, records, and information from the Contractor relating to contract administration functions

D.1.2 The term "Acceptance," as used in this Section, means the act of Contracting Officer or other authorized representative of the SAA by which the SAA assumes for itself, or approves specific services, as partial or complete performance of the Contract.

D.1.3 The term "Correction," as used in this Section, means the elimination of a defect by the Contractor.

D.2 Responsibility for Evaluation and Acceptance

Contracting Officer's Representatives (COR) are responsible for performing evaluation and ensuring adequate records are kept supporting acceptance or rejection. Acceptance will be made by the applicable COR; rejections, if necessary, will be made by the SAA Contracting Officer. Acceptance of the services provided will be accomplished by the applicable COR through evaluation.

D.3 Inspection - General Requirements

D.3.1 The SAA shall have the right with reasonable notice to send its representative into areas assigned for the Contractor employees' use at any time for inspection or other purposes approved by the Contracting Officer.

D.3.2 All SAA facilities including Senate offices serviced or used by the Contractor in performance of work under this Contract shall be subject to inspection by the SAA or its delegates.

D.3.3 The SAA shall permit access and provide the necessary means to do so for all services provided by the Contractor under this Contract.

D.4 Inspection of Goods/Services

D.4.1 The SAA has the right to inspect and evaluate all goods and services provided or performed under this Contract at all reasonable times and in a manner that will not unduly delay the work.

D.4.2 If any of the goods or services provided or performed are found not to conform with Contract requirements, the SAA may require Contractor to provide a correction or to re-perform the services again in conformity with Contract requirements, at no increase in Contract amount. The goods and services offered the SAA must, at a minimum, include the technical features and functionality certified by the Contractor and such portions or elements of the Contractor's proposal as incorporated into the Contract.

D.5 Responsibility for Inspection and Acceptance

Acceptance of the products or services provided will be accomplished by the cognizant COR or his or her designees through inspection and quality assurance in accordance with the Contract. The COR or his or her designees will inspect or review the goods/services provided by the Contractor to ensure conformance to the applicable specifications and requirements set forth in this Contract, including those portions of the Contractor's proposal incorporated into the Contract.

SECTION E - INSPECTION AND ACCEPTANCE

E.1 Definitions

E.1.1 "Services," as used in this clause, includes services, workmanship, and documentation furnished or utilized in the performance of services, and records and information from the Contractor relating to contract administration functions.

E.1.2 "Acceptance," as used in this clause, means the act of the Contracting Officer or other authorized representative of the Senate by which the Senate assumes for itself, ownership of existing and identified supplies, or approves specific services, as partial or complete performance of the Contract.

E.1.3 "Correction," as used in this clause, means the elimination of a defect by the Contractor.

E.2 Inspection - General Requirements

E.2.1 The SAA shall have the right with reasonable advance notice to send its representative into areas assigned for the Contractor employees' use at any time for inspection or other purposes approved by the Contracting Officer.

E.2.2 All Senate facilities utilized by the Contractor in performance of work under this Contract and any applicable Task Order shall be subject to inspection by officials of the Senate.

E.2.3 The SAA shall permit access and provide the necessary means to do so for all services provided by the Contractor under this Contract and any applicable Task Order.

E.3 Inspection of Goods/Services

E.3.1 The SAA has the right to inspect and evaluate all goods and services provided or performed under this Contract at all reasonable times and in a manner that will not unduly delay the work.

E.3.2 If any of the goods or services provided or performed are found not to conform with Contract requirements, the SAA may require the Contractor to provide a correction or to re-perform the services again in conformity with Contract requirements, at no increase in Contract or task order amount. The goods and services offered the Senate must, at a minimum, include the technical features and functionality certified by the Contractor and such portions or elements of the Contractor's proposal as incorporated into the Contract or task order.

E.4 Responsibility for Inspection and Acceptance

E.4.1 The COR is responsible for performing inspection and ensuring adequate records are kept supporting acceptance or rejection. Acceptance will be made by the COR; rejections, if necessary, will be made by the Contracting Officer or delegate.

E.4.2 Acceptance of the products or services provided will be accomplished by the COR through inspection and quality assurance. The COR will inspect or review that the goods/services provided by the Contractor to ensure the conformance to the applicable specifications set forth in this Contract or task order, if any, including those portions of the Contractor's proposal incorporated into the Contract or task order and any applicable task order SOW. Acceptance shall be conclusive unless otherwise notified by the SAA within ninety (90) calendar days after satisfactory delivery or completion of acceptance testing. Acceptance does

not waive the Senate's rights nor is acceptance conclusive with regard to latent product defects or those defects made manifest only through the extended use of the product.

SECTION F - PERFORMANCE

F.1 Deliverable Item

The Contractor shall complete all work hereunder in accordance with the Contract, including delivery of all goods and services, effective from the date of the Contract or notice to proceed issued by the Contracting Officer.

F.2 Place of Performance

All work to be completed under this Contract shall be on-site at Senate Offices and facilities, unless written authorization is obtained in advance from the SAA Contracting Officer.

F.3 RESERVED

SECTION G – CONTRACT ADMINISTRATION DATA

G.1 Contract Administration

Administration of this Contract will be performed by the SAA Contracting Officer (CO) or the CO's delegates. The Contracting Officer is authorized to make contractual modifications and render contractual decisions, including but not limited to, changes in the scope of work and monetary additions or deletions, subject to the United States Senate authority delegated to them. No changes shall be effective without a modification of the Contract. All communications pertaining to contractual and/or administrative matters under this Contract should be addressed to:

David W. Baker	United States Senate
Contracting Officer	U.S. Capitol Building, S-151
Office of the Sergeant at Arms	Washington, DC 20510-7207
Email: acquisitions@saa.senate.gov	Telephone Number: (202) 224-2547

G.2 Contracting Officer's Representative (COR)

G.2.1 The Contracting Officer will designate a Contracting Officer's Representative (COR) for task orders issued under this Contract who will be responsible for providing technical direction and control during performance of said task orders. The COR is responsible for performing inspection and ensuring that adequate records are kept supporting acceptance or rejection. Acceptance will be made by the COR.

G.2.2 Designated by the Contracting Officer, the COR is assigned the responsibility to (a) provide technical direction to the Contractor(s) within the constraints of the SOW, (b) monitor and oversee the daily performance of the Contractor, (c) realign Contractor resources to fulfill contract requirements as long as specified contractual limits are not exceeded, (d) authorize all invoices for payment, and (e) perform final inspection and acceptance of all deliverables including reports and invoices. If the invoice is not acceptable

for certification, the Contracting Officer shall be notified in writing with the detailed reason for rejection. Additionally, the COR will inspect, accept, or reject all work performed and resolve day to day matters directly with the Contractor.

G.2.3 The COR will be identified by task order.

G.3 Submission of Invoices and Payment Schedule

G.3.1 The Contractor shall email invoice(s) in PDF format to AP@saa.senate.gov after acceptance of deliverables by the Contracting Officer or the Officer's designee. Do not email invoices to the Contracting Officer, the Contracting Officer's Representative, the Buyer, or include the invoices with physical deliveries. Contractor questions regarding payment status should be directed to the email address above.

G.3.2 The SAA shall make payment to the Contractor after receipt and acceptance of invoices and approval by the Contracting Officer or the Officer's designee. The SAA is not bound to the payment due dates on the vendor's invoice and will pay within a reasonable time. The SAA does not pay state and local sales taxes, late payment fees, interest, penalties, or equivalent charges. All Contractor Specific Terms requiring the U.S. Senate to pay any future fees, charges, or penalties are hereby rejected. The SAA is not subject to the Prompt Payment Act, 31 U.S.C. § 3901 et. seq.

G.3.3 The invoice shall contain at a minimum: the company letterhead with name, address, telephone number, remittance address, Accounts Receivable department email address, invoice number, billing date, account number, amount due, purchase order number and line number; a description of the product and / or service including quantity and unit cost with reference to the purchase order line number; and period of performance for services rendered.

G.3.4 For Labor-Hour and Time and Material contracts and task orders, the Contractor shall provide, at a minimum, an invoice that reflects a breakdown by task, hourly rate, hours worked and billed, and other direct costs. The invoice shall match individual reports submitted to the SAA every two weeks for use by the Contracting Officer's Representative in reconciling and verifying invoices for payment.

G.3.5 For Blanket Purchase orders, the Contractor shall provide an invoice that reflects order dates, order placed by and shipment dates. Each line item (quantity and unit price) on the invoice must be accurately reflected and all resulting line-item amounts must sum to the total invoice amount.

G.3.6 Electronic invoices for payment must be submitted as a non-editable, searchable Portable Document Format (PDF) file. The Contractor shall ensure invoices are submitted in the correct format, are legible, and contain the required information. Invoices are subject to acceptance and will be rejected and returned to the Contractor for correction if in error or incomplete. Invoices shall be emailed to AP@saa.senate.gov. The subject line of the email must contain the vendor name, purchase order number, and invoice number.

G.3.7 Payments are made by direct deposit. Contractor shall contact the Senate Disbursing Office (Vendor_Requests@Disbursing.Senate.gov) to enroll in the direct deposit payment service. Contractor shall provide the Disbursing Office with a current IRS Form W-9 and signed direct deposit authorization

form with banking information. If Contractor does not support direct deposit, Contractor shall allow an additional two-to-four weeks for check payments mailed through the United States Postal Service (USPS).

G.4 Electronic Funds Transfer (EFT) Payment

G.4.1 The U.S. Senate Disbursing Office (Disbursing Office) on behalf of the SAA may elect to send the Contractor a Payee/Company Information Form to be completed and signed by the appropriate company official. The Contractor shall designate a single financial agent capable of receiving and processing the electronic funds transfers. The Contractor shall pay all fees and charges for receipt and processing of transfers.

G.4.2 If an uncompleted or erroneous transfer occurs because the Disbursing Office failed to use the Contractor provided EFT information in the correct manner, the U.S. Senate shall remain responsible for:

- a. making a correct payment, and
- b. assisting Contractor in the recovery of any erroneously directed funds.

G.4.3 If an uncompleted or erroneous transfer occurs because the Contractor provided EFT information was incomplete at the time the Disbursing Office releases the EFT payment transaction instruction to the Federal Reserve System, and

- a. If the funds are no longer under the control of the payment office, the SAA is deemed to have made payment, and the Contractor is solely responsible for recovery of any erroneously directed funds; or,
- b. If the funds remain under the control of the payment office, the SAA shall have the right to either make payment by written check via mail or suspend the payment.

G.4.4 The Contractor or its Contractor's agent (i.e., bank) may notify the Contracting Officer in writing of a change to the routing transit number, Contractor account number, or account type. The Contractor agrees that the information provided by the agent to the SAA Contracting Officer is deemed to be correct information as if it were provided by the Contractor.

SECTION H – SPECIAL CONTRACT REQUIREMENTS

H.1 Order of Precedence

Any inconsistencies in this solicitation or Contract shall be resolved by giving precedence in the following order:

1. The schedule of supplies/services of this Contract and the Statement of Work;
2. The Assignment, Disputes, Payments, and Invoice paragraphs;
3. Other documents, exhibits, and attachments to the Contract including but not limited to the Contractor's proposal or quote.

H.2 Interpretation of Contract Requirements

No interpretation of any provision of this Contract, including applicable specifications, shall be binding on the SAA unless furnished or agreed to in writing by the Contracting Officer or his/her designated representative.

H.3 Reserved

H.4 Security

H.4.1 Cybersecurity Standard Operating Procedures

H.4.1.1 The Contractor shall comply with the latest version of U.S. Sergeant at Arms Standard Operating Procedures (SOPS) for Cybersecurity (see Attachment J-01).

H.4.2 Network Data and Information Security

H.4.2.1 Contractor shall use all appropriate care, in accordance with U.S. Sergeant at Arms SOPS for Cybersecurity (see Attachment J-01) for maintaining the integrity of the Senate network when Contractor personnel have network access either local or remote. Senate information is confidential material and must be protected, in accordance with Cybersecurity Responsibilities Acknowledgement, from loss disclosure and electronic penetration.

H.4.3 Personnel Security

H.4.3.1 Contractor personnel are required to be citizens of the United States of America (U.S.) or meet the eligibility requirements for Government of the United States employee compensation as specified in Public Law 111-117, Section 704.

H.4.3.2 The United States Capitol Police (USCP), on behalf of the Senate shall conduct background checks for all Contractor personnel that require unescorted access to Senate buildings or access to the Senate network and/or systems. The Contractor shall provide (on forms to be provided by the Senate) all of the following information to the Contracting Officer or his/her designee for each of the Contractor personnel that require background checks:

- a. USCP Form CP-491 (version 05/18) Request for Check for Criminal History Records
- b. Vendor Employee Background Information and Certification and Authorization to Release Information
- c. Non-Disclosure Certification & Software and Security Certification
- d. Proof of citizenship and eligibility to work in the United States
- e. U.S. Sergeant at Arms Standard Operating Procedures (SOPS) for Cybersecurity (latest version)
- f. Signed Acknowledgment of Information Privacy Policies
- g. FD-258 Fingerprinting Card (if applicant is outside of Washington Metropolitan area)

This information shall be provided to the Contracting Officer or his/her designee at least two (2) weeks prior to assigning personnel to work under this Contract. Upon notification, Contractor personnel located within the Washington Metropolitan area shall promptly report to the USCP Headquarters Building for

fingerprinting. Contractor personnel located outside of the Washington Metropolitan area shall proceed to their local law enforcement agency for fingerprinting.

H.4.3.3 Contractor personnel that require background checks shall not commence work on this Contract until such time as the Contractor is notified, in writing, by the Contracting Officer or their designee that an individual's background check has been completed and approved or that a temporary waiver has been granted until such time as the background check is completed. Such notification shall be made by the SAA no later than ten (10) business days following the submission of all the documentation specified in H.4.3.2 above. Contractor personnel that do not require unescorted access to Senate buildings or access to the Senate network and/or systems may perform work upon the Contract commencement date.

H.4.3.4 The Contractor shall immediately inform the SAA when there is a change in the eligibility to work in the U.S. status of any Contractor personnel performing under this Contract. The Contractor shall immediately remove any Contractor personnel when information is obtained that makes the Contractor believe that person has ceased to be a responsible individual and should no longer work under this Contract.

H.5 Delegation of Authority

The Contractor may delegate to its representative's authority in the performance of this Contract. Such delegation does not absolve the Contractor of accountability for performance of the Contract. All delegations of authority to fulfill the obligations of this Contract will be made in writing to the SAA Contracting Officer.

H.6 Modifications and Additions/Adjustments

Administrative changes, e.g., address corrections, are approved by the SAA Contracting Officer, and all other changes, modifications, additions, or deletions, which change the scope of this Contract, must be prepared in writing as formal modifications signed by both parties. Modifications may be subject to approval by the Committee on Rules and Administration, pursuant to the Senate Procurement Regulations.

H.7 Severability

If any portion of this Contract is determined to be either contrary to law or otherwise unenforceable, then that provision will be deemed to be omitted from the Contract, but only to the extent necessary to relieve the deficiency. All other provisions of the Contract, including such portions of the omitted clause as are not determined to be contrary to law or unenforceable, will remain in full force and effect.

H.8 Technology Upgrades

During the life of this Contract, the SAA may, at its option, permit the Contractor to substitute as orderable items, technologically advanced goods, and services, which become commercially available after the date of Contract award, provided that any substitute items are at least technically equal to the items replaced.

Recommended technology upgrades must be proposed by the Contractor in written proposal form and acceptance by the SAA in writing of the Contractor's recommendations will be evidenced by issuance of a contract modification authorizing such technology upgrade.

H.9 Exercise of Options

After the base term, this Contract is renewable in one-year increments, at the discretion of the SAA, for up to four (4) additional periods, at prices specified in Attachment J-2 Pricing Table. The SAA may extend the term of this Contract by written notice to the Contractor during the period of performance of this Contract; provided that the SAA gives the Contractor a preliminary written notice of its intent to extend at any time before the Contract expires. The preliminary notice does not commit the SAA to an extension.

H.10 Incorporation of Offeror's Proposal

The Contractor's proposal dated _____ is hereby incorporated into and made a part of this Contract.

H.11 Intellectual Property Rights

The SAA shall have unlimited, royalty free, rights in all data and products produced in the performance of this Contract, and in all products and data delivered under this Contract (except for restricted computer software) including software, technical data, manuals or instructional and training material for installation, operation, or routine maintenance and repair of items, components, or processes delivered or furnished for use. The term "Software," as used in this Section, means computer programs, computer data bases, and documentation thereof. The term also includes data identifying its source, functional characteristics, and performance characteristics, and specifically includes the source code, algorithm, processes, formulae, and flow charts of the software. The Contractor agrees that all intellectual and data rights in the software shall become the exclusive property of the Senate. The Contractor agrees to transfer all rights, title, and interest in the software to the Senate. With respect to manuals concerning pre-existing Contractor products, the SAA shall have an unlimited license to use copies of these manuals.

If the Contractor creates for the SAA any software ("Developed Software") as specified in the Contract, all the Contractor's services shall be considered work for hire and the SAA shall have all rights of ownership in the Developed Software. The SAA shall have a non-exclusive right to use any software received from the Contractor to the extent embedded in the Developed Software. The Contractor shall have no rights in Developed Software except as mutually agreed to in advance in writing by the parties.

The Contractor grants to the SAA a non-exclusive, perpetual, non-transferable royalty free license to use the ideas, know-how, or techniques, which may be used or provided by the Contractor as a result of performing the Statement of Work, including any enhancements made to the Contractor's software source code or to the documentation. Intellectual property rights shall convey to the SAA upon full payment for all products and data delivered under this Contract.

H.12 Restricted Rights Software

Contractor's commercial software and commercial computer software documentation are provided to the SAA in accordance with the terms of the Contractor's written software license that is provided with the Contractor's or third-party equipment purchased by Contractor for the SAA under this Contract. The Contractor represents and warrants that commercial software or computer documentation was developed at private expense and contains confidential information or trade secrets of the Contractor or its suppliers and licensors.

H.13 Liability

H.13.1 Workers' Compensation and Employer's Liability

The Contractor is required to comply with applicable Federal and State workers' compensation and occupational disease statutes. Employer's liability coverage of at least \$100,000 shall be required, except in States with exclusive or monopolistic funds that do not permit workers' compensation to be written by private carriers.

H.13.2 General Liability

- a. The Contractor shall have bodily injury liability insurance coverage written on the comprehensive form of policy of at least \$500,000 per occurrence.
- b. Property damage liability insurance shall be required only in special circumstances as determined by the SAA's Contracting Officer.
- c. Automobile liability. The Contractor shall have automobile liability insurance written on the comprehensive form of policy. The policy shall provide for bodily injury and property damage liability covering the operation of all automobiles used in connection with performing the contract. Policies covering automobiles operated in the United States shall provide coverage of at least \$200,000 per person and \$500,000 per occurrence for bodily injury and \$20,000 per occurrence for property damage. The amount of liability coverage on other policies shall be commensurate with any legal requirements of the locality and sufficient to meet normal and customary claims.
- d. Aircraft public and passenger liability. When aircraft are used in connection with performing the contract, the Contractor shall have aircraft public and passenger liability insurance. Coverage shall be at least \$200,000 per person and \$500,000 per occurrence for bodily injury, other than passenger liability, and \$200,000 per occurrence for property damage. Coverage for passenger liability bodily injury shall be at least \$200,000 multiplied by the number of seats or passengers, whichever is greater.

SECTION I - CONTRACT CLAUSES

I.1 Changes

I.1.1 The Contracting Officer may make changes, by modification or change order, within the general scope of this Contract. The Parties may negotiate or agree upon such changes before they are made to this Contract. The Contracting Officer may also make unilateral changes and modify this Contract by

issuing a written modification or change order. The Contractor shall assert any claim for equitable adjustment within thirty days of its receipt of the modification or change order.

I.1.2 Failure to agree to any adjustment shall be a dispute concerning a question of fact within the meaning of the clause of this Contract entitled "Disputes." However, nothing in this clause shall excuse the Contractor from proceeding with the Contract until changed.

I.2 Assignment of Claim

All clauses regarding the Contractor's right to assignment are subject to the Anti- Assignment statutes (31 U.S.C. § 3727, 41 U.S.C. § 6305). All clauses governing the Contractor's assignment in the Contractor Specific Terms are hereby rejected.

I.3 Disputes

Clauses in the Contractor Specific Terms referencing disputes, including choice of law and venue, are rejected and not applicable to this Contract. All disputes arising under this Contract, which are not disposed of by agreement, shall be decided pursuant to the U.S. Senate Procurement Regulations and applicable Federal law. Contractor Specific Terms that allow the Contractor to choose arbitration, mediation, or other forms of alternate dispute resolution are hereby rejected.

I.4 Benefits to Members of Congress

No member of, or delegate to Congress shall be admitted to any share or part of the proceeds of this Contract, or to any direct benefit that may arise thereupon. If this Contract is entered into with a corporation for its general benefit, then members of, or delegates to Congress, as shareholders, may benefit from any indirect benefit that accrues from this Contract in the manner that any shareholder would benefit.

I.5 Conflict of Interest

The Contractor certifies and warrants that the Contractor has no conflict of interest, direct or indirect, financial, or otherwise, which would be applicable to the performance of the obligations covered by this Contract. If an allegation of a conflict of interest is brought to the attention of the U.S. Senate, the Contractor agrees to fully cooperate with any investigation of the allegation(s), and will disclose to the U.S. Senate any other contract(s) to which the Contractor is party, public or private, or which the Contractor undertakes during the period of this Contract (including contracts entered into during the period of this Contract which includes duties to be fulfilled after the termination of the Contract). No member of or delegate to the United States Congress shall be admitted to any share or part of this Contract or to any benefit that may arise thereupon.

I.6 Gratuities

I.6.1 The SAA may, by written notice to the Contractor, terminate the right of the Contractor to proceed under the Contract if it is found after notice and hearing, by the Chairman, U.S. Senate Committee on Rules and Administration or her duly authorized representative, that gratuities (in the form of

entertainment, gifts, or otherwise) were offered or given by the Contractor, or any agency or representative of the Contractor, to any employee of the Senate with a view toward securing a contract or securing favorable treatment with respect to awarding or amending or the making of any determination with respect to the performance of such contract; provided, that the existence of the facts upon which the Chairman or her duly authorized representative makes such findings shall be in issue and may be reviewed in any competent court.

I.6.2 In the event this Contract is terminated as provided in Section I.6 hereof, the SAA shall be entitled (i) to pursue the same remedies against the Contractor as it could pursue in the event of a breach of the Contract by the Contractor, and (ii) as a penalty in addition to any other damages to which it may be entitled by law, to exemplary damages in an amount (as determined by the Chairman or her duly authorized representative) which shall be not less than three (3) nor more than ten (10) times the cost incurred by the Contractor in providing any such gratuities, to any other rights and remedies provided by law or under this Contract.

I.6.3 The rights and remedies of the SAA provided in this Section shall not be exclusive and are in addition to any rights and remedies provided by law applicable to this Contract.

I.7 Advertising

Clauses in the Contractor Specific Terms referencing advertising are rejected and not applicable to this Contract. The Contractor shall not refer to its work with the Senate in commercial advertising, promotional materials, or press releases in such a manner as to state or imply that the product or service provided is endorsed or preferred by the Senate or is considered by the Senate to be superior to other goods or services. Without limiting the scope of any provision of the Contract, the Contractor shall not use for promotional purposes any information related to the Contract and shall not disclose any such information to any entity outside the Senate except by express written permission of the Contracting Officer.

The Contractor shall submit any proposed commercial advertising, promotional materials, or press releases referring to its work with this Contract to the Contracting Officer for written approval. The Contractor shall not conduct or contribute to any news releases or press conferences pertaining to this Contract or mention of the Senate as a customer without prior written approval of the Contracting Officer. This clause applies to all media, including corporate and social media web sites. The Contractor shall not use the Seal of the Senate under any circumstances in any of its materials.

The Contractor shall incorporate the terms of this Section in any agreement with subcontractors, third-party partners, and suppliers furnishing supplies or services under this Contract.

I.8 Standards of Conduct and Restrictions

I.8.1 Contractor employees shall not solicit new business while performing task assignments at the Senate location related to performance under this Contract.

I.8.2 The Contractor and its employees shall refrain from discussing with unauthorized persons any information obtained in the performance of any task assignment under this Contract.

I.8.3 The Contractor and its employees shall conduct only such business as covered by this Contract during periods paid by the Senate. Business not directly related to this Contract shall not be conducted on Senate premises.

I.8.4 Use of the Senate's computer system(s) and/or equipment for company or personal use (other than that directly connected with this Contract) is strictly prohibited.

I.8.5 Contractor personnel are expected to adhere to the same professional ethical standards to which Senate personnel in a comparable position would be expected to adhere.

I.9 Examination of Records

I.9.1 The Contractor agrees that the Chairman of the U.S. Senate Committee on Rules and Administration or any of her duly authorized representatives shall, until the expiration of three (3) years after final payment, have access to and the right to examine any directly pertinent books, documents, papers, and records of the Contractor involving transactions related to this Contract.

I.9.2 The periods of access and examination described in paragraph I.9.1 above, for records which relate to (1) appeals under the Disputes clause of this Contract, (2) litigation or the settlement of claims arising out of the performance of this Contract, or (3) costs and expenses of this Contract as to which exception has been taken by the Chairman or any of her duly authorized representatives shall continue until such appeals, litigation, claims, or exceptions have been finally resolved.

I.10 Taxes

Except as may be otherwise provided in this Contract, the Contract price includes all applicable Federal, state, and local taxes and duties payable by Contractor. The U.S. Senate, including the SAA, is tax exempt as a federal instrumentality.

I.11 Privacy and Confidentiality

- a. General. During the course of performance of this Contract, the Contractor may have access to information and communications considered confidential by the Senate. The Contractor shall not disclose to any other person or entity any "Confidential Information" obtained from the Senate or in connection with delivery of the services related to this Contract.
- b. The term "Confidential Information" means (i) all information related to this Contract, the Senate, and all information collected, processed or otherwise accessed by the Contractor in performing under this Contract, and any data or information collected in connection with delivery of the services related to this Contract, and (ii) all other information that is identified (orally or in writing) as confidential or of such a nature that a reasonable person would understand such information to be confidential to the Senate.
- c. The Contractor shall provide notification of any loss of or unauthorized access to Confidential Information and shall use all efforts to mitigate the effect of such loss and to recover all Confidential Information. The Contractor shall (i) notify the applicable Senate Office within 24 hours of any suspected or confirmed incident of loss or unauthorized access to Confidential

Information and, no later than 72 hours of identifying such incident, describe in reasonable specificity and detail all Confidential Information affected, (ii) take corrective actions to eliminate any further disclosure, and (iii) work with the Senate to investigate the incident and provide an After Action Report documenting the incident, the cause, and steps taken to resolve the matter.

- d. Non-Use and Non-Disclosure of Confidential Information. The Contractor shall not (i) use Confidential Information for any purpose whatsoever other than the performance of Contractor in providing the services, or (ii) disclose Confidential Information to any third party. It is understood that Confidential Information shall remain the sole property of the applicable Senate Office. The Contractor shall take all reasonable precautions to prevent any unauthorized use or disclosure of Confidential Information. To the extent the Contractor feels it needs to disclose Confidential Information, it may do so only after obtaining written authorization from the applicable Senate Office. In the event that a Contractor receives any legal or investigative process seeking disclosure of Confidential Information, the Contractor shall follow the terms set forth in Section I.12 below.
- e. Failure to Comply. The Contractor shall preserve the confidentiality of all such information and communications and agrees not to disclose any such Confidential Information for any purposes whatsoever without the prior approval of the applicable Senate Office. Failure to comply with the provisions of this Paragraph may be grounds for Termination for Default. The Contractor is responsible for enforcing these requirements on its subcontractors and third-party partners.
- f. Notice. With respect to notification requirements in this Section, the Contractor may contact the Contracting Officer as to how to effectuate notice or obtain authorization from the applicable Senate Office.
- g. The Contractor shall incorporate the terms of this Section in any agreement with subcontractors, third-party partners, and suppliers furnishing supplies or services under this Contract.

I.12 Senate Data Protection

- a. Definitions.
 - i. “Agent of the Office of the SAA” includes a provider of electronic communication service or remote computing service commissioned or used through the Office of the SAA by a Senate office to provide such services to the Senate office, including but not limited to the Contractor, its officers, employees, suppliers, team members, agents, business affiliates, and subcontractors under this Contract;
 - ii. “Electronic Communication” means any transfer of signs, signals, writing, images, sounds, data, or information of any nature transmitted in whole or in part by wire, radio, electromagnetic, photoelectronic, or photo optical system;
 - iii. “Electronic Communication Service” means any service which provides to users thereof the ability to send or receive wire, wireless, or electronic communications;

- iv. "Electronic Communications System" means any wire, radio, electromagnetic, photo optical or photoelectronic facilities for the transmission of wire, wireless, or electronic communications, and any computer facilities or related electronic equipment for the electronic storage of such communications;
 - v. "Office of the SAA" means the Office of the Sergeant at Arms and Doorkeeper of the Senate;
 - vi. "Provider for a Senate Office" means a provider of electronic communication service or remote computing service directly commissioned or used by a Senate office to provide such services including but not limited to the Contractor, its officers, employees, suppliers, team members, agents, business affiliates, and subcontractors under this Contract;
 - vii. "Remote computing service" means the provision to the public of computer storage or processing services by means of an electronic communications system;
 - viii. "Senate Data", with respect to Senate Office, means any electronic mail or other electronic or data communication, other data (including metadata), or other information of the Senate Office; and
 - ix. "Senate Office" means a committee or office of the Senate, including a Senator, an officer of the Senate, or an employee of, intern at, or other agent of a committee or office of the Senate.
- b. Senate or SAA Data Possession. Any Agent of the Office of the SAA or Provider for a Senate Office understands and agrees that they shall not be treated as acquiring possession, custody, or control of any data, metadata, electronic communication, emails (regardless of age), or other information by reason of such communication being transmitted, processed, or stored (whether temporarily or otherwise), through use of any data center, platform, electronic systems or software, which is owned, operated, used, or maintained in order to provide services to any Senate Office as a result of this Contract.
- c. Notification. Any Agent of the Office of the SAA or Provider for a Senate Office understands and agrees to notify a Senate Office of any legal or investigative process seeking disclosure of Senate Data of the Senate Office that is transmitted, processed, or stored (whether temporarily or otherwise) through the use of an electronic system established, maintained, or operated, or the use of electronic services provided, in whole or in part by the Agent of the Office of the SAA or Provider for a Senate Office.

As provided by 2 U.S.C. § 6628, notwithstanding any other provision of law or rule of civil or criminal procedure, any Agent of the Office of the SAA or Provider for a Senate Office that is providing services to a Senate Office shall not be barred, through operation of any court order or any statutory provision, from notifying a Senate Office of such legal or investigative process.

- d. Protection of Senate Information. Any Agent of the Office of the SAA or Provider for a Senate Office understands and agrees that Senate Data provided to or uploaded to an Agent of the Office of the SAA or Provider for a Senate Office may include legislative information; documents; correspondence; or other data including metadata, protected in its entirety, from compelled disclosure by the U.S. Constitution, federal law, and/or case law. If an Agent of the Office of the SAA or Provider for a Senate Office receives any legal or investigative process seeking disclosure of Senate Data, the Agent of the Office of the SAA or Provider for a Senate Office agrees that it:
 - i. will not disclose Senate Data outside of the Contractor except as directed or approved by the applicable Senate Office in regard to Senate Data that applies to that applicable Senate Office;
 - ii. will advise the individual or entity seeking disclosure of the Senate Data of the provisions in 2 U.S.C. § 6628; and
 - iii. will notify the applicable Senate Office immediately of the legal or investigative process seeking disclosure and provide a full copy of the request for Senate Data to the applicable Senate office.
- e. Notice. With respect to notification requirements in this Section, the Contractor may contact the Contracting Officer as to how to effectuate notice or obtain authorization from the applicable Senate Office.
- f. Relevant Statutory Authorities. This provision references 2 U.S.C. § 6628, as amended (see, Pub. L. 116-260, div. FF, title IV, § 401 (2020)); 18 U.S.C. § 2711; 18 U.S.C. § 2510.
- g. The Contractor shall incorporate the terms of this Section in any agreement with subcontractors, third-party partners, and suppliers furnishing supplies or services under this Contract.

I.13 Cybersecurity

- a. The Contractor shall:
 - 1. take and continue to take commercially reasonable steps to protect the information technology assets and data used in connection with the operation of the business of the Contractor, including the confidentiality of such data.
 - 2. ensure information technology assets are and continue to be adequate and operational for, in accordance with its documentation and functional specifications, the business of the Contractor.
 - 3. comply, remain, and continue to comply with all obligations under applicable laws and regulations regarding personally identifiable information.
 - 4. establish commercially reasonable disaster recovery and security plans, procedures, and facilities for the business of the Contractor, including, without limitation, for the information technology assets and data held or used by or for the Contractor. These plans, procedures, and facilities shall remain available for the duration of the Contract.

- b. At any time during the Contract, the Contractor shall notify the SAA if it does not, or cannot, comply with any of the terms in Section I.13a, in part or in whole.
- c. The Contractor shall incorporate the terms of this Section in any agreement with subcontractors, third-party partners, and suppliers furnishing supplies or services under this Contract.

I.14 Data Transfer

The Contractor shall take all steps reasonably necessary to ensure that Senate Data is treated securely, and no transfer of Senate Data will take place to a third party or jurisdiction outside of the United States.

The Contractor shall incorporate the terms of this Section in any agreement with subcontractors, third-party partners, and suppliers furnishing supplies or services under this Contract.

I.15 Data Return

The Contractor agrees to return all SAA or Senate Data, as referenced in Section I.12 above, or information in its possession to the SAA or the applicable Senate office, respectively, within thirty (30) days, upon termination, cancellation, expiration, other conclusion of this Contract, or if requested by the SAA or Senate Office. If return is not feasible, the Contractor agrees to destroy and not retain any copies of the data and furnish the SAA or the applicable Senate office, respectively, with an appropriate Certificate of Destruction of all SAA or Senate information that is in the Contractor's possession. The Contractor shall not permit or allow any third parties to access, acquire, or possess SAA or Senate information. The Contractor shall use NIST 800-88 Media Sanitization Guidelines or equivalent data destruction procedures for guidance.

The Senate is not subject to several privacy and data protection statutes, regulations, and policies, and the Contractor shall consult the SAA should a question arise regarding the applicability of any such statute or regulation.

The Contractor shall incorporate the terms of this Section in any agreement with subcontractors, third-party partners, and suppliers furnishing supplies or services under this Contract.

I.16 Incident Notification

If the Contractor, or its subcontractors or third-party partners, learns of any incident—defined as a security event that may compromise the integrity, confidentiality, or availability of any Senate Data in performance of this Contract, the Contractor shall, within 24 hours of an incident, report any incident to the SAA Security Operations Center (SOC) at (202) 228-7620 or csoc@saa.senate.gov. No later than 72 hours of identifying such incident, the Contractor shall (i) describe in reasonable specificity and detail all Senate Data affected, (ii) take corrective actions to eliminate any further disclosure, and (iii) work with the Senate to investigate the incident. This notification requirement applies, whether the incident is identified by the Contractor or brought to the Contractor's attention by a third party.

The Contractor shall report incidents only to the SAA SOC and not to any other government entity. The Senate, as a Legislative Branch entity, is not subject to US-CERT reporting requirements and has not formally adopted or implemented US-CERT policies or procedures.

The Contractor shall incorporate the terms of this Section in any agreement with subcontractors, third-party partners, and suppliers furnishing supplies or services under this Contract.

I.17 Change in Control

The Contractor will notify the Contracting Officer thirty (30) days before it merges with or is acquired by another entity, or declares bankruptcy, insolvency, or any other change of ownership proceedings. The SAA reserves the right to cancel the Contract upon notice of change of ownership. The SAA may require the Contractor to delete, destroy, or return any Senate Data, as referenced in Section I.12 above, in its possession, and sanitize any devices that previously stored SAA or Senate Data.

I.18 Termination for Convenience

The SAA reserves the right to terminate this Contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work hereunder and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this Contract, the SAA shall be liable only for payment in accordance with the payment provisions of this Contract for products delivered or services rendered prior to the effective date of termination.

I.19 Default

I.19.1 The SAA may, subject to the provisions of paragraph I.19.3 below, by written notice of default to the Contractor, terminate the whole or any part of this Contract if the Contractor fails to perform the services within the time specified herein or any extension thereof.

I.19.2 If this Contract is terminated as provided in paragraph I.19.1 of this clause, the SAA, in addition to any other rights provided in this clause may withhold from amounts otherwise due Contractor for such services performed such sum as the Contracting Officer determines to be necessary to protect the U.S. Senate and the SAA against loss because of outstanding liens or claims of former lien holders.

I.19.3 If, after notice of termination of this Contract under the provisions of this clause, it is determined for any reason that Contractor was not in default under the provisions of this clause, or that the default was excusable under the provisions of this clause, the rights and obligations of the parties shall be the same as if a notice of termination for convenience had been issued.

I.20 Subcontractors

The Contractor shall not use a Subcontractor not proposed or approved at the time of contract award without the written approval from the Contracting Officer. The Contractor shall provide the SAA five (5) past performance references of work performed within the past three (3) years by the Subcontractor, provide the negotiated rates with the Subcontractor, and provide a copy of the Agreement and/or the Letter of Intent to the Contracting Officer when requesting approval for the use of a Subcontractor.

Contractor shall not authorize Subcontractor to commence work without written approval of the Contracting Officer. The Contractor shall incorporate, and require its Subcontractors at all tiers to incorporate, all applicable clauses provided herein in Subcontractor(s) agreement(s).

I.21 Legislative Branch Entities

- i. Any legislative branch agency within the United States Government, including, but not limited to, the Senate, House of Representatives, Library of Congress, United States Capitol Police, or Architect of the Capitol, shall be allowed, but is not required, to utilize this Contract on a non-mandatory basis to satisfy such entity's requirement for the goods and services available under this Contract.
- ii. In the event that one of the above-named entities issues and the Contractor accepts a contract or purchase order, then the ordering entity shall be considered the Customer under this Contract. In the event of a conflict regarding the Contractor's ability to fulfill contracts or purchase orders issued under this Contract by Customer or another legislative entity, the Contractor shall notify the Contracting Officer who will determine the priority of those contracts and purchase orders for fulfillment by the Contractor.
- iii. The Contractor will at all times use reasonable efforts to accommodate the delivery of goods and services under of the contracts or purchase orders to meet the Customer and individual entity's needs. In those cases where the Contracting Officer has not determined priority, the Contractor will give priority or precedence to this Contract entered into with the Senate. Upon request of the Contractor, the Contracting Officer and/or his or her delegate may provide further guidance as to the contracts and orders placed under this Contract by one of the above referenced entities.

I.22 Equitable Remedies

In the absence of a direct citation to a statute permitting equitable remedies, all clauses in the Contractor Specific Terms referencing equitable remedies are rejected and not applicable to this Contract.

I.23 Limitation of Funding

The SAA may allot funds incrementally to the Contract up to the entire Contract value. The Contractor shall notify the Contracting Officer in writing whenever it has reason to believe that the costs it expects to incur under this Contract in the next sixty (60) days, when added to all costs previously incurred, will exceed seventy-five (75) percent of the total amount of funding allotted to the Contract by the SAA. The notice shall state the estimated amount of additional funds required to continue and complete performance for the period specified in the Contract.

Except as required by other provisions of the Contract, specifically citing and stated to be an exception to this clause, the SAA is not obligated to pay the Contractor for costs incurred in excess of the total funding amount allotted by the SAA to this Contract; and the Contractor is not obligated to continue performance under this Contract (including actions under the Termination clause of this Contract) or otherwise incur costs in excess of the funding amount then allotted to the Contract by the SAA.

I.24 Entire Agreement

This Contract, Contractor's Proposal attached hereto, and any written modifications issued and executed, is the sole agreement between the SAA and Contractor relating to the subject matter hereof, and supersedes all prior understandings, writings, proposals, representations or communications, oral or written, of either party. The Contract and any future written modifications will only be considered executed when signed by authorized representatives of both parties.

SECTION J – ATTACHMENTS

J-01 U.S. Sergeant at Arms Standard Operating Procedures (SOPS) for Cybersecurity

J-02 Pricing Table – Base + Option Years

SECTION K - REPRESENTATION AND CERTIFICATIONS

The information and certifications contained in this section concern a matter within the jurisdiction of an agency of the United States and the making of false, fictitious, or fraudulent certifications may render the maker subject to prosecution under Section 1001, Title 18, United States Code.

K.1 Name and Title of Representative of Contractor Authorized to Sign Contract

Name:	
Title:	
Authorized Signature:	
E-Mail Address:	
Date:	

K.2 Contact Persons

The Contractor shall provide the names, addresses, and telephone numbers of the individuals who may be contacted by the SAA to address any questions or concerns associated with this Contract.

Contact Name	Address	E-Mail	Telephone Number

K.3 System for Award Management (SAM)

The Contractor represents and warrants that it is not currently suspended, debarred or proposed for debarment by any Federal, state or local governmental entity, or otherwise listed as an excluded party in SAM (www.sam.gov/portal/public/SAM/). Check whichever applies:

- Currently registered in SAM.
- Not currently registered in SAM, but in the process of completing registration.

Name and Title of Certifying Officer

Date

Signature

K.4 Equal Employment Compliance Certification

The Contractor certifies that, to the best of its knowledge and belief, except as noted below, up to the date of the offer, no written notice such as a show cause letter, a letter indicating probable cause, or any other formal written notification citing specific deficiencies, has been received by the Contractor from any Federal Government agency or representative thereof that the Contractor or any of the divisions or affiliates or known first tier Subcontractors is in violation of any of the provisions of Executive Order 11246 of September 24, 1965, Executive Order 11375 of October 13, 1967, or rules and regulations of the Secretary of Labor (41 CFR, Chapter 60) and specifically as to not having an acceptable affirmative action program or being in noncompliance with any other aspect of the Equal Employment Opportunity Program.

It is further agreed that should there be any change in the status of circumstances between this date and the date of expiration of this offer or any extension thereof, the Contracting Officer and COR will be notified promptly.

Notes: (Insert "None" if applicable):

Name and Title of Certifying Officer

Date

Signature

K.5 Certification of Non-Segregated Facilities

(a) The Contractor certifies to the best of its knowledge and belief that:

- i. The Contractor does not maintain or provide for its employees any segregated facilities at any of its establishments;
- ii. the Contractor does not permit its employees to perform their services at any location, under its control, where segregated facilities are maintained;

- iii. The Contractor will not maintain or provide for its employees any segregated facilities at any of its establishments; and
- iv. The Contractor will not permit its employees to perform their services at any location, under its control, where segregated facilities are maintained.

(b) As used in this provision, the term Segregated facilities means any waiting rooms, work areas, rest rooms, restaurants and other eating areas, time clocks, locker rooms and other storage or dressing areas, parking lots, drinking fountains, recreation or entertainment areas, transportation, and housing facilities provided for employees which are segregated by explicit directive or are in fact segregated on the basis of race, color, religion or national origin, because of habit, local custom, or otherwise.

(c) The Contractor agrees that a breach of this certification is a violation of the Equal Opportunity clause of this Contract.

(d) The Contractor further agrees that (except where it has obtained identical certifications from proposed Subcontractors for specific periods) it will obtain identical certifications from proposed Subcontractors prior to the award of subcontracts exceeding \$10,000 which are not exempt from the provisions of the Equal Opportunity clause; that it will retain such certifications in its files; and that it will forward the following notice to such proposed Subcontractors (except where the proposed Subcontractors have submitted identical certifications for specific time periods).

(e) A Certification of Non-Segregated Facilities must be submitted prior to the award of a subcontract exceeding \$10,000 which is not exempt from the provisions of the Equal Opportunity clause. The certification may be submitted either for each subcontract or for all subcontracts during a period (e.g., quarterly, semiannually or annually).

Name and Title of Certifying Officer

Date

Signature

K.6 Debarment and Suspension Certifications

(a) The Contractor certifies to the best of its knowledge and belief that:

- i. The Contractor and/or any of its principals are ___ are not ___ [INDICATE ONE] presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency or instrumentality of the Senate;
- ii. The Contractor and/or any of its principals have ___ have not ___ [INDICATE ONE], within a three (3) year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, state, or local) contract or subcontract; violation of

Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, or receiving stolen property;

- iii. The Contractor and/or any of its principals are ____ are not ____ [INDICATE ONE], currently indicted for or otherwise criminally or civilly charged by any federal, state or municipal agency with commission of any of the offenses enumerated in paragraph (a) (ii) of this provision.
- iv. the Contractor and/or any of its principals has ____ has not ____ [INDICATE ONE] within a three (3) year period preceding this offer had one or more contracts terminated by default by any federal, state or municipal agency.

(b) For purposes of this provision, principals is defined as officers, directors, owners, partners, and persons having primary management or supervisory responsibilities within a business entity.

(c) The Contractor shall provide immediate written notification to the Contracting Officer and COR if, at any time prior to the Contract award, the Offeror learns that its certification was erroneous by reason of changed circumstances.

(d) A certification that any of the items in paragraph (a) above exists will not necessarily result in withholding of award under this solicitation. The certification will be used in connection with a determination of the Offeror's responsibility.

Name and Title of Certifying Officer

Date

Signature

SECTION L – INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

L.1 General Guidelines for Submitting Proposals

The instructions below provide guidance for the preparation and submission of proposals. Their purpose is to establish requirements for the format and content of proposals to ensure that proposals are complete, contain all essential information, and can be evaluated equitably.

In addition to the requirements stated below, Offerors shall submit a comprehensive proposal in response to the evaluation factors specified in Section M, Evaluation Factors for Award. In order to receive full consideration in the source selection process, Offeror's proposal, at a minimum must address all of the requirements, tasks, and deliverables listed in Section C, and shall be submitted in the format as outlined below.

L.2 Technical and Administration Questions

Technical and Administrative questions shall be submitted by Offerors only via email to acquisitions@saa.senate.gov to the attention of Nicole Barnes no later than 12:00 Noon ET on, October 9, 2024. Questions via telephone, fax, or any means other than email shall not be accepted. Responses to all Offerors' written questions shall be distributed to each Offeror via email.

L.3 Date and Time of Closing

The Technical, Price, and Administrative Proposals must be received at the Office of the Sergeant at Arms via email to acquisitions@saa.senate.gov to the attention of Nicole Barnes by 12:00 Noon ET on April 18, 2025. No United States Postal Service, courier deliveries, or any other delivery services or methods of delivery shall be used for this solicitation. All transmissions are limited to no more than six (6) MB of data. If multiple submissions are required to meet the size limitations, the Offeror shall number each transmission in the subject line. The final transmission shall not only include the number but also indicate it is the final proposal transmission.

L.4 Minimum Acceptance Period

Offerors allowing less than ninety (90) calendar days for acceptance of a proposal by the SAA will be rejected as unacceptable.

L.5 Special Notice to Offerors

L.5.1 The SAA intends to award multiple IDIQ contracts. Offerors are encouraged to submit a responsive proposal for each CLIN of the IDIQ in which they wish to be evaluated. Offerors are not required to submit a response for every CLIN but shall propose for at least one CLIN.

L.5.2 The initial TOPR's will be TOPR 01- IT Equipment Moving Services, TOPR 02 – Shredding Services, and TOPR 03 – Emergency Cleaning Services.

L.5.3 Offeror is responsible for the completeness of its IDIQ and TOPR(s) proposal submissions. The evaluation of proposals and quotations will be conducted in accordance with Section M Evaluation Factors for Award.

L.5.4 Offerors are to submit a proposal that represents their best efforts to respond to the Solicitation requirements. Any inconsistencies between the Technical and Price and Administrative Proposals must be

explained. A significant inconsistency, if unexplained, will raise a fundamental question of the Offeror's understanding of the work required and ability to perform the Contract. This may be grounds for either rejection of the proposal or a basis for a determination of non-compliance. With respect to cost estimates, the burden of proving cost credibility rests with the Offeror.

L.5.5 Upon receipt, all solicitation proposals and task order quotations become SAA property.

L.6 Proposal Preparation

The written proposal shall consist of two (2) separate volumes: Volume I is Technical and Volume II is Price and Administrative.

1. Cost information shall appear only in the Price and Administrative Volume.
2. Each page shall be numbered.
3. The page limits for the two (2) volumes are depicted in the table below.

Volume	Title	Page Limit
I	Technical Proposal	25*
II	Price & Administrative Proposal	None

*Total shall not exceed 25 page maximum for the Technical Proposal. References, past performance, and/or attachments are not included in the Technical Proposal page limit.

L.7 Proposal Instructions

L.7.1 Volume I - Technical Proposal Instructions

Volume I shall be prepared and submitted as specified below. In Volume I, the Offeror shall demonstrate the ability to meet the specifications and requirements in Section C. The information contained in this section will be used as a basis for the evaluation of the factors listed in Section M.

The Technical Proposal shall contain the following sections:

Section 1 Corporate Experience

Section 2 Responses to Requirements and Deliverables

Section 3 Qualifications of Staff

Section 4 Past Performance References

Section 5 Response to Task Order Proposal Requests (TOPR's)

L.7.1.1 Section 1 - Corporate Experience

L.7.1.1.1 Offeror Company Information

The Offeror shall provide an overview of its company. The overview shall include company history, products, and services. This information shall include, at minimum, company name, primary company contact, phone number, email address, and address. The Offeror shall also provide similar information for any partners, subcontractors, or affiliates providing support services for this solicitation's requirements.

L.7.1.1.2 Offeror's Subcontractors

The Offeror shall provide a concise description of all subcontractors that may be proposed to provide services to fulfill a part of this solicitation's requirements. The proposal shall describe the subcontractor's role on the Contract, how the subcontractor will be integrated into the project organization including description of how the Subcontractors will be managed, the services they will provide, and reports they will provide. The Offeror shall detail prior relationships with each subcontractor and provide information on contract performance. If the Offeror and subcontractor have not entered a prior contractual relationship, discuss why it was chosen for this Contract.

L.7.1.2 Section 2 - Responses to Requirements and Deliverables

The Offeror shall provide a proposal to demonstrate a detailed understanding of the requirements and deliverables and describe approaches and methods that shall be employed in fulfilling this solicitation. The Offeror shall describe in specific detail how it will satisfy requirements and deliverables in Section C.

The Offeror shall present their understanding of the support requirements described in Section C of the Solicitation. The Offeror shall document any support requirements in Section C that the Offeror will be unable to satisfy with an explanation of the obstacles or issues that would keep the Offeror from meeting the requirements. The Offeror shall document any support requirements in Section C that the Offeror will be able to exceed and a discussion of the capabilities that allow the Offeror to exceed the requirements.

L.7.1.2.1 IDIQ Technical Approach

The technical proposal must include:

1. A comprehensive description of ability to perform functional and technical services in support of the requirements in Section C.
2. The Offeror shall identify, describe, and discuss any process, methodology, or plan that its proposed technical approach includes which would clearly be an evaluation discriminator.
3. The Offeror shall document any requirements in Section C that the Offeror will be unable to satisfy with an explanation of the obstacles or issues that would keep the Offeror from meeting the requirements.

L.7.1.3 Section 3 – IDIQ Qualifications of Staff

A well-qualified staff is critical to the success of the Contract. In this section, the Offeror is required to document the make-up and qualifications of its staff. Provide a representative list of labor categories, descriptions, and minimum qualifications for staff.

L.7.1.4 Section 4 – IDIQ Past Performance

a. Offeror (including any proposed subcontractors) shall comply with the instructions as follows:

This Section shall present a list of the Offeror's similar experience as a Prime Contractor for up to three (3) contracts performed in the past three (3) years and shall include contracts (Federal, state, local government or commercial) of similar work and complexity related to effort described in Section C. Subcontractors shall submit a list of the two (2) most relevant contracts or subcontracts, ongoing or

completed within the past three (3) years, for services and support of similar size and scope to the requirements in this Solicitation.

1. Offerors shall include the following information for each contract and subcontract:

- a. Name of contracting activity,
- b. Contract number,
- c. Contract type,
- d. Total contract value,
- e. Detailed synopsis of the Contract work performed,
- f. Contracting officer name, email address, and telephone,
- g. Program manager name, email address, and telephone,
- h. Contracting Officer Representative, if different from Item f, name, email address, and telephone, and
- i. List of teaming partners and subcontractors.

b. Past Performance Questionnaire

The listed references for the Offeror and each named subcontractor shall complete and submit the attached Past Performance Questionnaire, Appendix A-1, as follows:

1. The Offerors provided references shall be sent attached Past Performance Questionnaire to the selected point of contact, and request that the Technical Representative complete and submit the Past Performance Questionnaire directly to the United States Senate, Attention Nicole Barnes at acquisitions@saa.senate.gov no later than 12:00 Noon ET on October 25, 2024. Instructions for submission of the completed questionnaires are provided on the questionnaire.

L.7.1.5 Section 5 – Response to Task Order Proposal Requests (TOPR's)

The Offeror shall submit a separate technical and price proposal(s) in response to TOPR 01- IT Equipment Moving Services, TOPR 02 – Shredding Services, and TOPR 03 – Emergency Cleaning Services. Offerors shall submit a responsive proposal for each TOPR that is applicable to their proposed IDIQ CLIN's in which they wish to be evaluated.

The Contractor shall provide a technical approach demonstrating a detailed understanding of the TOPR(s) requirements, tasks, and deliverables and describe the approach, method, and supervision that shall be employed in fulfilling the Task Order(s).

L.7.2 VOLUME II - PRICE & ADMINISTRATIVE PROPOSAL

L.7.2.1 IDIQ Price Proposal Instructions

The Offeror shall provide a price proposal in accordance with the table provided in Attachment J-2 Pricing Table. The Pricing Table shall include the firm fixed price, Labor Hour or Time and Material for

materials/supplies and hourly rates for each proposed labor category required to provide the services and deliverables required in the Contract and any potential task order that will be issued under the Contract.

L.7.2.2 Task Order Proposal Request (TOPR) Pricing

The Offeror shall provide hourly rates and proposed hours, time and material, and/or firm fixed prices for services and deliverables required in the TOPR. Offeror shall complete the pricing table of the applicable TOPR to reflect the fixed prices and hourly rates, as stated in Attachment J-2, that will be used for the required work described. All pricing shall be fully burdened with all costs inclusive of travel, transportation, and Other Direct Costs (ODCs).

L.7.2.3 Assumptions, Exceptions, or Dependencies. The Offeror shall clearly identify any assumptions, exceptions, or dependencies, if any, made by the Offeror regarding its pricing. Offeror shall provide its best price at time of initial offer.

L.7.2.4 The Offeror's price proposal shall include sufficient details to allow determination of the reasonableness of the offered prices/rates. All proposed prices must be adequately supported. The proposal must include sufficient background information to show derivation of all costs. If the cost proposal cannot be understood, it may result in the entire proposal being found to be unacceptable and thus eliminated from the competition.

L.7.2.5 Administrative Proposal Instructions

The following, which shall form the basic contract, shall be included in this volume:

- a. Signed Section A, Solicitation/Contract Form. Offeror shall complete Section A: Page 1 of the solicitation, subsections 9 through 14. The completed page shall be submitted as a PDF file;
- b. Acknowledgment to any solicitation amendment;
- c. Completed model contract (Solicitation Sections B-J) with costs and other Offeror information inserted in all blanks;
- d. Completed Section K, "Representations, Certifications, and Other Statements of the Offeror" for both Prime Contractor and Subcontractor(s) and/or Teaming Partners;
- e. A summary which identifies and explains any exceptions to or conditions for any solicitation provision or contract clause. Rationale for the exception and/or condition shall be fully provided as well as reference to the respective provision or clause. The Senate advises Offerors that it intends to evaluate proposals and may award a contract(s) without discussions; and,
- f. Technical and Contractual points-of-contact. Provide telephone as well as e-mail address.

SECTION M – EVALUATION FACTORS FOR AWARD FOR IDIQ CONTRACTS AND TASK ORDER AWARDS

M.1 Basis for Contract Award

This is a best value, competitive source selection conducted in accordance with the Senate Procurement Regulations. The SAA intends to award multiple IDIQ Contracts. Only IDIQ Contract awardees will be eligible for award of any task orders. The evaluation panel will consist of participants from the SAA Evaluation Panel (Panel). The SAA reserves the right not to award a contract depending on the quality of the proposal(s) submitted and the availability of funds.

M.2 Offer Acceptability

The SAA reserves the right to make awards based on the initial proposals and task order proposals received. Therefore, Offeror's shall, without exception or reservation, provide the information required in response to this Solicitation.

M.3 Acceptable Proposals

The SAA reserves the right to consider as acceptable only those proposals that are submitted in accordance with requirements set forth or referenced in this solicitation. Offerors shall demonstrate an understanding of requirements and a capability to provide the requested support services. The SAA reserves the right to reject proposals that do not address solicitation requirements, including contract terms and conditions.

M.4 Evaluation Procedures

The Offeror's response will be subjected to an overall evaluation based on the total submission. The evaluation will include conformance checks on all requirements, tasks, and deliverables.

The Evaluation Panel (Panel) will evaluate Offerors' proposals. Each member of the Panel shall evaluate each Offeror's technical proposal for Offeror's ability to meet the requirements, perform the tasks and provide the deliverables described in this Solicitation. The Technical Proposals will be evaluated against established evaluation criteria, separately from the Price Proposal evaluation.

The Price Proposal will be considered to determine the technical capability and cost combination that presents the best value to the SAA. The SAA may award without discussions; however, the SAA reserves the right to hold discussions if it is deemed advantageous.

M.5 IDIQ Evaluation Factors

The Offeror's response will be evaluated on technical merit as well as be subjected to an overall evaluation criterion based on the total proposed submission. The technical evaluation will consist of conformance checks on all requirements and deliverables.

Evaluation of accepted Offerors' proposals will be made in accordance with the three (3) factors outlined in this Section. Factors 1 and 2 are referred to as the IDIQ Technical Factors. For purposes of a best value trade-off analysis between the evaluation factors, the Technical Factors, Factor 1 – IDIQ Technical Approach and Factor 2 – IDIQ Past Performance, together are more important than Price. The importance of Price, as a factor, could become greater where Offerors' technical offers are evaluated as equal.

Factor 1 – IDIQ Technical Approach

Factor 2 – IDIQ Past Performance

Factor 3 – IDIQ Price

M.5.1 Factor 1 - IDIQ Technical Approach

Technical approach will be evaluated by an assessment of the Offerors' proposed technical capacity to meet the SAA's requirements and deliverables as demonstrated by information contained in the Technical Proposal. The emphasis in this factor is on the ability of the Offeror to demonstrate its abilities to successfully perform the requirements of the solicitation.

The following are the key criteria that will be used to evaluate the Offeror's technical approach:

- a. Clear and concise written technical approach that meets or exceeds the Solicitation's requirements;
- b. Comprehensive methodology, technique, or plan to accomplish the project; and any proposed quality assurance procedures;
- c. Overall company and staff qualifications to provide the range and magnitude of services required for this project;
- d. Ability to meet the stated requirements and deliverables; and,
- e. Demonstration of the necessary understanding, expertise, personnel, and experience to successfully accomplish the proposed work.

M.5.2 Factor 2 - IDIQ Past Performance

The Panel will evaluate Past Performance for each Offeror to establish confidence in the Offeror to successfully perform the IDIQ Contract.

The Panel will review the Offeror's similar experience as a Prime Contractor during the past three (3) years. The Panel will review the Offeror's Subcontractors similar experience during the past three (3) years. The past contracts (Federal, state, or local government or commercial) shall be of similar work and complexity related to the effort described in Section C.

Evaluation of past performance will be based on consideration of all relevant facts and circumstances potentially from a variety of sources, including but not limited to submitted Past Performance Questionnaires.

M.5.3 IDIQ Price

The SAA will review and evaluate Volume II - Price Proposal for reasonableness, completeness, accuracy, and cost effectiveness of the proposed solution. A determination will be made as to whether the Offeror has properly understood the instructions in Section L.7.1 and properly completed Attachment J-02, Pricing Table – Base + Option Years.

For evaluation purposes, the SAA will derive a proposed price for the IDIQ, by multiplying the Offeror's proposed rates by an SAA-estimated hours and quantities of products for the Base period and each Option

year. Please note that the SAA estimated quantities will not carry through to the Contract, and or solely being used for evaluation purposes.

Any proposals that are unrealistic in terms of technical commitment or unrealistically low in cost(s) and/or price will be deemed to imply an inherent lack of technical competence or failure to comprehend the complexity and risk of contract requirements and may be grounds for rejection of the proposal.

M.6 TOPR Evaluation Factors

Evaluation of accepted Offerors' proposals for the TOPR's, will be made in accordance with the two (2) factors outlined in this Section. For purposes of a best value trade-off analysis between the evaluation factors, TOPR(s) Technical Approach (01, 02, and/or 03) are more important than Price. The importance of Price as a factor could become greater where Offerors' technical offers are evaluated as equal.

Factor 4 – TOPR(s) Technical Approach

Factor 5 – TOPR(s) Price

M.6.1 Factor 4 – TOPR(s) Technical Approach

The SAA will evaluate the proposed technical approach to address the SAA requirements and deliverables contained in the TOPR(s). The following are the key criteria that will be used to evaluate the Offeror's overall Technical Capability

- a. Clear and concise technical approach that meets or exceeds the Task Order requirements;
- b. Comprehensive methodology/processes, technique, or plan to accomplish the Task Order; and,
- c. Technical ability to meet the stated Task Order requirements;

M.6.2 Factor 5 – TOPR(s) Price

For evaluation purposes, the SAA will derive a proposed price for the TOPR(s), by multiplying the Offeror's proposed TOPR rates by an SAA-estimated hours and quantities of products for the Base period. Please note that the SAA estimated quantities will not carry through to the Contract, and or solely being used for evaluation purposes.

Changes to the quantities; blanks; or zeros in the pricing columns and/or mathematical mistakes on these tables may be subject to clarification for confirmation of the Offeror's intent. The Offeror proposal will be checked for mathematical correctness to include checking arithmetic in all computations and making sure that all prices/costs are summarized correctly.

Any proposals that are unrealistic in terms of technical commitment or unrealistically low in cost(s) and/or price will be deemed to imply an inherent lack of technical competence or failure to comprehend the complexity and risk of contract requirements and may be grounds for rejection of the proposal.

M.6 Overall Evaluation

The Offeror's response will be evaluated based on the total submission. The evaluation will include conformance checks on all requirements, tasks, and deliverables. The Technical and Price and Administration proposals will be evaluated for completeness, accuracy, and consistency. Incompleteness, inaccuracy, or significant unexplained inconsistencies may be grounds for rejection of the proposal.

M.7 Proposals Not Selected

Non-selection of a proposal shall mean that either another proposal was deemed to be of greater value to the SAA, or that the SAA has elected not to award a contract. Offerors whose proposals are not selected for award will be notified. Unsuccessful offerors may request a debriefing, such request to be made within five (5) business days of notification. The actual schedule of the debriefing will be determined by the SAA.

M.8 Discussions

The SAA reserves the right to require discussions with one (1) or more Offerors with the evaluation team or any other designated staff. The Offeror will receive a minimum of three (3) business days' notice for the discussions. If discussions are requested, the Offeror must involve its proposed key personnel in said discussions.

M.9 Final Proposal Revisions

The SAA Contracting Officer may, based on the evaluation process described above, decide that an award based on initial proposals is not in the best interests of the SAA. In such an instance, the Contracting Officer may establish a competitive range of those Offerors having a reasonable chance for award, may conduct discussions with, and only with, each of the Offerors included in the competitive range, and may request that each of the Offerors so included submit Final Proposal Revisions.